6

Article 12 and Equality

1 INTRODUCTION

Chapter 2 described the dominant narrative of disability rights development as reflecting a journey from protection to autonomy, from exclusion to inclusive personhood and from discrimination to equality. The chapter tracked policy and rights progression from reflecting the dominance of a charity model of disability to a social model. It also began a critique of that dominant narrative by discarding a strict social model of disability in favour of one that recognises the residual impacts of impairment. I have also explained how disability rights developed from being framed as a mere socio-economic policy issue to its eventual inclusion on the agenda of civil-political human rights, the latter being widely considered the only 'true' human rights. I further argued that the framing of Article 12 as fundamental to all other rights is an over-correction to the historical exclusion of disability from civil-rights agendas. The over-correction fails to acknowledge the principle of indivisibility as recognising interdependencies between rights, together with the equal importance of socio-economic with civil–political rights.

In Chapter 4, I argued that the narrative of rights development – from protection to autonomy, and from exclusion to personhood – has led to endeavours to include adults with cognitive disability in liberal conceptions of autonomy and personhood. However, these endeavours fail because they continue to privilege rationality as the basis of personhood, emphasise civil-political rights over socio-economic rights and fail to acknowledge the residual dependencies and disadvantages experienced by adults with cognitive impairment. In Chapter 5, I argued that because autonomy excludes some adults with cognitive disability from personhood, it should be replaced by the concept of five-dimensional dignity. Dignity can be formulated to be more inclusive than autonomy – in particular, by acknowledging the residual impacts of impairment, the social dimensions of being human, and by valuing embodied (not just abstract) personhood. Acknowledgement of impairment and associated disadvantages serves

to disrupt the notion that recognition of autonomy is the goal of rights recognition by emphasising the equal importance of socio-economic rights with civil–political rights (the latter more traditionally associated with the value of autonomy).

This chapter considers how the condition of equality in Article 12, which demands recognition of legal capacity 'on an equal basis with others', does not simply equate with the right to be free from discriminatory action, nor the right to be treated the same as others. Section 2 begins with an introduction to the UN Disability Committee's '*General Comment No 6 (2018) on equality and non-discrimination*' ('*General Comment No 6*'),[1] and how it reiterates that the fulfilment of Article 12 is a pre-condition to the fulfilment of all other rights, including the right to equality. This is followed by a description of how *General Comment No 6* interprets key concepts in equality law, by reference to existing human rights law. It explains how *General Comment No 6* prescribes a model of substantive, not just formal, equality, which requires recognition of difference and demands positive actions by the State to achieve equality. Section 3 describes the complexities of deciding what equality means when we are all situated differently and argues that *General Comment No 6* reflects proposals in the literature that equality for people with disability is an approximation for inclusion. It goes on to consider commentaries that describe substantive equality as embodying the principle of indivisibility by bridging civil-political and socio-economic rights, applying these commentaries to the concept of inclusive equality in *General Comment No 6*.

In considering the four dimensions of inclusive equality prescribed by *General Comment No 6*, Section 4 focuses on what equality means in Article 12 – that is, redressing socio-economic disadvantage, addressing stigma and reducing violence, encouraging participation and inclusion and accommodating difference, while respecting dignity. It first reviews the literature on Article 12 that endeavours to formulate 'disability-neutral' tests for legal capacity, concluding that neutrality is elusive under a test of indirect discrimination. Second, it reviews the literature that justifies the differential response of decision-making by substitutes as non-discriminatory (and promoting equality), according to various tests of substantive equality later built on in *General Comment No 6*.

In Section 5, I argue that while *General Comment No 6* reiterates that Article 12 requires the abolition of decision-making by substitutes, this conclusion is premised on an outmoded concept of formal equality that demands the same treatment for all. Section 5 concludes by arguing that applying the four dimensions of inclusive equality, as driven by the principle of indivisibility, leads to an interpretation of Article 12 that allows for both supported decision-making and decision-making by

[1] *United Nations Committee on the Rights of Persons with Disabilities 'General Comment No. 6 (2018) on equality and non-discrimination* CRPD/C/GC/6 ('*General Comment No 6*').

substitutes as a last resort. The chapter begins and concludes with the case of Jess to consider what inclusive equality may mean for her.

> Jess, aged 76, has advanced dementia and lives on a rural property with her adult son. The property has been in the family for generations and Jess has always wanted it to stay in the family. She has also been very house-proud in the past.
>
> To 'manage' her dementia, her son has placed Jess in the laundry under the house and locked the door to prevent her from wandering. Jess does not object to her living situation and appears acquiescent or compliant, always favouring her son over her other children.
>
> Neighbours report the situation to the police, who find Jess under the house, malnourished and soiled.

2 EQUALITY AND NON-DISCRIMINATION IN HUMAN RIGHTS LAW

'Equality' has been described as a 'moral and analytical mechanism for ensuring that all people effectively enjoy human rights guarantees'.[2] According to Wouter Vandenhole, it is 'without doubt one of the central principles of human rights law and of the UN core human rights treaties in particular'.[3] Equality thus affirms the universality of human rights. It also implies that, when it comes to their fulfilment, no one person or group of persons should be privileged or disadvantaged over another. Beyond that, however, the meaning and application of equality are widely contested.

In the case of Jess, we know that she is being treated unfairly, and most of us would agree she is being discriminated against or treated unequally because of her dementia. If we were to respect Jess's expressed will and preferences to be 'supported' by her son and to live under the house, then we could be said to be respecting her will and preferences or her legal capacity (or, on some accounts, her autonomy)[4] 'on an equal basis with others'. This raises these questions: When responding to inequality, to what extent do we consider differences in starting positions? Is it the treatment or the result that must be 'equal'? And what does 'equal' mean anyway? Different

[2] Jarlath Clifford, 'Equality' in Dinah Shelton (ed), *The Oxford Handbook of International Human Rights Law* (Oxford University Press, 2013) 420, 421.

[3] Wouter Vandenhole, *Non-Discrimination and Equality in the View of the UN Human Rights Treaty Bodies* (Intersentia, 2005) 1.

[4] See Chapter 4 for discussion of various concepts and applications of autonomy.

answers to these questions have led to contested concepts of equality in human rights law, as well as different mechanisms for its realisation.[5]

This section introduces *General Comment No 6*, sets out the provisions in the CRPD that affirm the right to equality and non-discrimination, and describes the key concepts of formal and substantive equality and direct and indirect discrimination. Following this is a description of those mechanisms expressly prescribed by the CRPD and explained in *General Comment No 6* as tools for achieving substantive equality – that is, the provision of reasonable accommodation and 'specific measures'. It explains how these mechanisms demand, as their starting point, a recognition of the difference of disability.

2.1 *Introduction to* General Comment No 6

In 2018, the UN Disability Committee published *General Comment No 6*, which describes both equality and non-discrimination as being 'at the heart of the Convention',[6] as being 'interconnected with human dignity',[7] and as not just principles but as separate human rights.[8] It goes on to describe and interpret those provisions in the CRPD that relate to the right to equality and describes how the CRPD has developed a 'new model of equality', which it calls 'inclusive equality'. This model:

> embraces a substantive model of equality and extends and elaborates on the content of equality in: (a) a fair redistributive dimension to address socioeconomic disadvantages; (b) a recognition dimension to combat stigma, stereotyping, prejudice and violence and to recognize the dignity of human beings and their intersectionality; (c) a participative dimension to reaffirm the social nature of people as members of social groups and the full recognition of humanity through inclusion in society; and (d) an accommodating dimension to make space for difference as a matter of human dignity.
>
> The Convention is based on inclusive equality.[9]

[5] Clifford (n 2) 422.

[6] *General Comment No 6* [7].

[7] Ibid [4].

[8] Ibid. 'The effective enjoyment of the rights to equality and non-discrimination calls for the adoption of enforcement measures, such as: … (f) Effective, proportionate and dissuasive sanctions for breach of the right to equality and adequate remedies; …': [31]; 'the right to equality and non-discrimination …': [47]; 'the right to equality and non-discrimination …': [73(h)]; 'the rights to non-discrimination and equality …' [73(k)]; equality is universally recognised as a 'principle' of human rights law, and it has been said that the right to non-discrimination has become the dominant legal gateway to enforcing equality: Clifford (n 2) 426; there is no broad consensus on whether there exists in human rights law an independent *right* to equality, but some discussions in the literature suggest that either this is, or at least should be, the case: ibid 442; Broderick refers to the CRPD as including the 'right to equality': Andrea Broderick, *The Long and Winding Road to Equality and Inclusion for Persons with Disabilities: The United Nations Convention on the Rights of People with Disabilities* (Intersentia, 2015) 120, 221.

[9] *General Comment No 6* [11].

General Comment No 6 describes how inclusive equality operates in interpreting and applying a range of articles in the CRPD,[10] including Article 12,[11] and further explains the importance of enforcement and remedies for violation.[12] The focus of this chapter is on how *General Comment No 6* formulates substantive, inclusive equality and how it helps interpret Article 12.

General Comment No 6 reiterates the UN Disability Committee's existing interpretation of Article 12 as providing that 'The right to legal capacity is a threshold right, that is, it is required for the enjoyment of almost all other rights in the Convention', prescribing that the fulfilment of the right to legal capacity is required for the fulfilment of the right to equality and non-discrimination.[13] It further reiterates that: 'Discrimination through denial of legal capacity may be present in different ways, including status-based, functional and outcome-based systems. Denial of decision-making on the basis of disability through any of these systems is discriminatory;'[14] and 'guardianship laws and other rules infringing upon the right to legal capacity' must be repealed.

2.2 *Key Equality Provisions in the CRPD*

The concept of equality pervades the text of the CRPD. The Preamble refers to the 'equal and inalienable rights of all members of the human family',[15] to the rights of people with disability to participate 'as equal members of society'[16] and 'on an equal basis with others',[17] and endorses the UN Standard Rules on the Equalisation of Opportunities for Persons with Disabilities.[18] The convention's purpose is stated in Article 1 as 'to promote, protect and ensure the full and *equal* enjoyment of all human rights and fundamental freedoms by all persons with disabilities' [emphasis

[10] Article 6 (Awareness raising), Article 7 (Children with disabilities), Article 9 (Accessibility), Article 11 (On situations of risk and humanitarian emergencies), Article 13 (On access to justice), Article 14 (On liberty and security of the person), Article 15 (On freedom from torture, cruel, inhuman or degrading treatment or punishment), Article 16 (On freedom from exploitation, violence and abuse), Article 17 (On protecting the integrity of the person), Article 19 (On living independently and being included in the community), Article 23 (On respect for home and the family), Article 24 (On education), Article 25 (On health), Article 27 (On work and employment), Article 28 (On adequate standard of living and social protection), Article 29 (On participation in political and social life), and Article 32 (On international cooperation).

[11] *General Comment No 6* [47]–[51].

[12] Ibid [30]–[34].

[13] Ibid [47].

[14] Ibid.

[15] Preamble para 1.

[16] Preamble para 10.

[17] Ibid Preamble para 5.

[18] Ibid Preamble para 6. See also: 'children with disabilities' should enjoy human rights 'on an equal basis with other children': [18]; providing that persons with disabilities and their families should receive assistance 'to contribute towards the full and equal enjoyment of the rights of persons with disabilities': [24].

added].[19] The General Principles include 'Non-Discrimination' (principle 2) and 'Equality of Opportunity' (principle 5).

Article 5 also establishes a stand-alone right to equality and non-discrimination, which can be engaged independently of a violation of any other provision.[20] The inclusion of this stand-alone right to equality and non-discrimination contributes to the broad-based rights framework of the CRPD, as being more than just an anti-discrimination convention.[21] Article 5 CRPD 'Equality and non-discrimination' provides that:

1. States Parties recognize that all persons are equal before and under the law and are entitled without any discrimination to the equal protection and equal benefit of the law.
2. States Parties shall prohibit all discrimination on the basis of disability and guarantee to persons with disabilities equal and effective legal protection against discrimination on all grounds.
3. In order to promote equality and eliminate discrimination, States Parties shall take all appropriate steps to ensure that reasonable accommodation is provided which are necessary to accelerate or achieve de facto equality of persons with disabilities shall not be considered discrimination under the terms of the present Convention.

In addition to this overarching right to equality and non-discrimination in Article 5 (the meaning of which is considered at some length below), other specific rights, including Article 12, are to be enjoyed 'on an equal basis with others'. These include the right to accessibility (Article 9), the right to life (Article 10), access to justice (Article 13), and the right to liberty and security of the person (Article 14). The words 'on an equal basis with others' appear a total of thirty-one times in the convention.[22]

[19] Ibid Article 1.

[20] Jessica Lynn Corsi, 'Article 5: Equality and Non-Discrimination' in Ilias Bantekas et al (eds), *The UN Convention on the Rights of Persons with Disabilities: A Commentary* (Oxford University Press, 2018) 140, 157; Rachele Cera, 'Article 5: Equality and Non-Discrimination' in Valentina Della Fina, Rachele Cera and Giuseppe Palmisano (eds), *The United Nations Convention on the Rights of Persons with Disabilities: A Commentary* (Springer International Publishing, 2017) 157, 160. In this respect, it follows the discrimination prohibition in Article 26 *International Covenant on Civil and Political Rights, opened for signature 19 December, 1966, 999 UNTS, (entered into force 23 March 1976)* ('*ICCPR*') which is broader than its counterpart in *International Covenant on Economic, Social and Cultural Rights, opened for signature 16 December, 1966, 993 UNTS 3 (entered into force 3 January 1976)* ('*ICESCR*') Article 2(2), the latter being limited to prohibiting discrimination only in respect of upholding rights listed in that covenant.

[21] See Chapter 3, Section 5.1.

[22] As noted by Broderick, *The Long and Winding Road to Equality and Inclusion for Persons with Disabilities* (n 8) 92. In addition to the articles referenced above, see Article 15 'Freedom from torture or cruel, inhuman or degrading treatment or punishment', Article 17 'Protecting the integrity of the person', Article 18 'Liberty of movement and nationality', Article 21 'Freedom of expression and opinion, and access to information', Article 22 'Respect for privacy', Article 23 'Respect for home and the family', Article 24 'Education', Article 27 'Work and employment', Article 29 'Participation in political and public life', Article 30 'Participation in cultural life, recreation leisure and sport'.

The UN Disability Committee has described the concept of equality as a 'golden thread' weaving throughout the CRPD.[23]

'Discrimination on the basis of disability' (referred to in Article 5 above) is defined in Article 2 as:

> any distinction, exclusion or restriction on the basis of disability which has the purpose or effect of impairing or nullifying the recognition, enjoyment or exercise, on an equal basis with others, of all human rights and fundamental freedoms in the political, economic, social, cultural, civil or any other field. It includes all forms of discrimination, including denial of reasonable accommodation.

The definition has two elements. The first element is an act that makes a 'distinction, exclusion or restriction on the basis of disability', and the second is that the act has to affect the person's 'human rights and fundamental freedoms' unequally and adversely. This means that different treatment for people with disability in the form of a 'distinction, exclusion or restriction' is not in itself sufficient to constitute discrimination. To be discriminatory, the different treatment must have a detrimental effect on, be disadvantageous to or have an unfavourable result for the person subject to the treatment, in relation to the recognition of their human rights.

The inclusion of the catch-all that discrimination on the basis of disability 'includes all forms of discrimination' is a result of a consensus reached during drafting that the prohibition be as wide as possible. There was agreement that the definition should include both direct and indirect discrimination and failure to provide reasonable accommodation. It would also clarify that affirmative action or special measures were not discriminatory if designed to achieve equality of opportunity and treatment.[24]

The meanings of direct and indirect discrimination, reasonable accommodation and positive or specific measures are complex and frequently contested. To understand them, it is first necessary to consider the different understandings of formal and substantive equality that have developed in international human rights law and that are also explained in *General Comment No 6*.

2.3 *Formal Equality*

Formal equality is rooted in the much-quoted Aristotelian axiom that things that are alike should be treated alike.[25] This axiom forms the basis of formal equality, where

[23] Corsi (n 20) 156.

[24] Anna Nilsson, 'Article 2: Definitions' in Ilias Bantekas, Michael Ashley Stein and Dēmētrēs Anastasiou (eds), *The UN Convention on the Rights of Persons with Disabilities: A Commentary* (Oxford University Press, 2018) 63, 65–6.

[25] Clifford (n 2) 421; Sandra Fredman, *Discrimination Law* (Oxford University Press, 2nd ed, 2011) 8; Rosie Harding, 'Equality, Social Justice and Older People' in Israel Doron and Nena Georgantzi (eds), *Ageing, Ageism and the Law: European Perspectives on the Rights of Older Persons* (2019) 15, 19.

the legal system on its face treats people the same as others. *General Comment No 6* describes how 'Formal equality seeks to combat direct discrimination by treating persons in a similar situation similarly'.[26] It requires that preferential treatment never be given to any one group over another but that everyone be treated on their merits.[27] Paragraph 1 of Article 5 CRPD is said to embody formal equality in recognising that all persons 'are equal before and under the law'.[28] Equality before the law is generally understood to require equal treatment by legal institutions (including the courts and police)[29] so that all people are treated alike.[30] Formal equality focuses on commonalities and the universal to require and justify equal treatment.[31]

Arnadóttir describes how formal equality was the predominant model in rights law and discourse from the 1950s to the 1970s, but since then has come under sustained critique and been replaced by other concepts of equality including substantive equality.[32] In requiring 'universal sameness' of treatment, formal equality has had the effect of ignoring significant inequalities where people were placed differently.[33] It assumes a 'benign social norm' and ignores differences, including the difference of disability.[34] Arnadóttir describes formal equality as a type of procedural equality, 'void of normative content', demanding equal treatment even when it leads to unequal results.[35] Formal equality also focuses on negative state obligations,[36] privileges the idea of the laissez-faire liberal state and emphasises individual merit or fault. In failing to distinguish between discrimination against privileged groups and those experiencing disadvantage,[37] formal equality excludes from protection members of marginalised groups, including people with disability.[38]

In the case of Jess, if we apply a model of formal equality, then in allowing Jess to make her own decision, she is being treated under the law the same 'as others'. If a guardianship order were imposed on Jess, however, then this amounts to different, and some would say 'unequal', treatment. This analysis assumes, however, a 'benign

[26] *General Comment No 6* [10].
[27] Corsi (n 20) 157.
[28] Cera, 'Article 5' (n 20) 161; Corsi (n 20) 161.
[29] Corsi (n 20) 161.
[30] Cera, 'Article 5' (n 20) 161.
[31] Camillia Kong, *Mental Capacity in Relationship: Decision-Making, Dialogue and Autonomy* (Cambridge University Press, 2017) 24.
[32] Oddný Mjöll Arnadóttir, 'A Future of Multidimensional Disadvantage Equality' in Oddný Mjöll Arnadóttir and Gerard Quinn (eds), *The UN Convention on the Rights of Persons with Disabilities: European and Scandinavian Perspectives* (Nijhoff, 2009) 41, 47.
[33] Jonas-Sebastien Beaudry, 'Welcoming Monsters: Disability as a Liminal Legal Concept' (2017) 29(2) *Yale Journal of Law & the Humanities* 291, 321.
[34] Rosemary Kayess and Philip French, 'Out of Darkness into Light? Introducing the Convention on the Rights of Persons with Disabilities' (2008) 8(1) *Human Rights Law Review* 1, 8.
[35] Arnadóttir (n 32) 48; Beaudry, 'Welcoming Monsters' (n 33) 321.
[36] Arnadóttir (n 32) 49.
[37] Ibid.
[38] Ibid; Kayess and French (n 34) 8.

social norm' and ignores difference.[39] It ignores the fact that Jess is situated in a disadvantageous position because of her dementia and associated dependence on her son. We are all allowed to pursue our personal lives according to our wishes – but, in the case of Jess, most would agree that life is more complex.

There are limits to the fairness of a simple formal model of equality, and these limitations have led to the development of the concept of substantive equality.

2.4 *Substantive Equality*

The drafters of the CRPD focused, from the start, on a substantive equality approach, which demands positive actions by the State to accommodate the difference of impairment.[40] For example, Article 21 provides for freedom of expression, which is typically construed as a negative obligation on the State to refrain from silencing its citizens. However, Article 21 recognises that people with disability will only be able to exercise this right equally with others in a substantive sense if they are provided with access to information in appropriate formats. Substantive equality, or versions of it, has also been referred to as 'material equality'[41] or sometimes 'equality of opportunity',[42] the latter recognising a person's specific socio-economic context[43] and requiring equality of results.[44] *General Comment No 6* states that 'Equalization of opportunities, as a general principle of the Convention under Article 3, marks a significant development from a formal model of equality to a substantive model of equality'.[45]

[39] 'In other words, formal equality assumes a benign social norm, and focuses on the elimination of perverse personal behaviour. It does not seek to change the fundamental structure of the norm. The central premise of formal equality – the disregard of difference – is particularly problematic in a disability context for another reason. Perhaps more so than for any other disadvantaged group, treatment of persons with disability "equally" will often require specific recognition and accommodation of their difference; that is, "different" treatment': Kayess and French (n 34) 8.

[40] Sarah Arduin, 'Article 3: General Principles' in Ilias Bantekas, Michael Ashley Stein and Anastasiou Dimitris (eds), *The UN Convention on the Rights of Persons with Disabilities: A Commentary* (Oxford University Press, 2018) 85, 85, 101.

[41] María Soledad Cisternas Reyes, 'Foreword' in Valentina Della Fina (ed), *The United Nations Convention on the Rights of Persons with Disabilities: A Commentary* (Springer, 2017) v, v.

[42] Cera, 'Article 5' (n 20) 158.

[43] Sergiu Bălan, 'Formal and Substantive Equality of Opportunity' (2012) IV(4) *Cogito* 85, 86.

[44] Corsi (20) 157; note in the literature more widely there is some lack of clarity as to whether equality of opportunity means formal or substantive equality; see ibid 100–11; 'Professor Terry Carney stated that equality, in the sense used in Article 12, "can be variously formulated": It can be expressed as a purely *formal* concept (i.e. an 'opportunity') or in more substantive terms, as an achievement of distributive equity': Australian Law Reform Commission, *Equality, Capacity and Disability in Commonwealth Laws: A Final Report* (2014) 43; Bălan writes that there can be either formal or substantive equality of opportunity: Bălan (n 43) 100; Arduin (n 40) 100.

[45] *General Comment No 6* [10]; see also 'Equalization of opportunities means the process through which the general system of society, such as the physical and cultural

Substantive equality recognises difference[46] but challenges 'the equation of difference with inferiority'.[47] It recognises the effects of indirect discrimination – that identical treatment, including being subject to the same merit criteria, may nevertheless constitute discrimination. Prohibitions solely against direct discrimination – that is, rules that, on their face, select a person with disability for unfavourable treatment on the basis of their disability – may lead to formal equality but can ignore the needs of members of already marginalised groups.[48]

In the case of Jess, attempts at formal equality that applied the same rule to her 'as others' – in terms of non-interference in her decision-making – failed to result in what most of us would consider to be substantive equality. The abolition of guardianship on its own may lead to formal equality, but I argue that unless there is another type of remedy or intervention, the needs and rights of Jess as an already marginalised member of the community have been ignored.

2.5 *Direct and Indirect Discrimination*

Direct discrimination is said to be 'the most obvious form of discrimination',[49] occurring when 'in a similar situation, persons with disabilities are treated less favourably than other persons … for a reason related to a prohibited ground'.[50] According to *General Comment No 6*, indirect discrimination occurs when 'laws, policies or practices appear neutral at face value but have a disproportionate negative impact on a person with a disability'.[51] A claim of indirect discrimination was considered by the UN Disability Committee in *HM v Sweden,* where discrimination on the basis of disability was found even though a planning Act was 'applied in the same way to all,

environment, housing and transportation, social and health services, educational and work opportunities, cultural and social life, including sports and recreational facilities, are made accessible to all': Gerard Quinn and Theresia Degener, *Human Rights and Disability: The Current Use and Future Potential of United Nations Human Rights Instruments in the Context of Disability* (United Nations, 2002) 18 quoting from the *Vienna Declaration* [12].

46 Arnadóttir (n 32) 50.

47 Kayess and French (n 34) 8.

48 Arnadóttir (n 32) 47–50.

49 Nilsson (n 24).

50 *General Comment No 6* [18(a)].

51 Ibid [18(b)]. *General Comment No 6* expressly adopts the definitions of direct and indirect discrimination first promulgated in Committee on Economic, Social and Cultural Rights *General Comment No 20: Non-Discrimination in Economic, Social and Cultural Rights (Art 2, [2], of the International Covenant on Economic, Social and Cultural Rights)*, 42nd sess, Agenda Item 3, UN Doc E/C.12/GC/20 (2 July 2009) [10(b)]). See also Fredman, who defines indirect discrimination as having three elements: 'equal treatment, a disproportionately exclusionary impact on those sharing a protected characteristic, and the absence of acceptable justification' in Fredman, *Discrimination Law* (n 25) 154.

whether they have disabilities or not'.[52] The applicant was a person with disability who claimed indirect discrimination when the State refused her permission to build a hydrotherapy pool at her home.

While the UN Disability Committee in its findings in *HM v Sweden* did not use the terms 'direct' or 'indirect', it is reasonable to describe these circumstances as an example of indirect discrimination, because identical treatment led to discrimination when 'the particular circumstances of the individual(s) … [were] disregarded'.[53] The difference experienced by the adult as a result of her impairment had not been recognised by the State in its refusal for building permission. Applying the same response to the applicant as to adults without disability had resulted in a detriment to the applicant not suffered by others. Several human rights were breached, including the rights to live independently and receive supports in the community (Article 19) and the rights to health (Article 25) and habilitation (Article 26). The UN Disability Committee found that the State had breached its obligation under the general anti-discrimination provision in Article 5(1) and its more specific obligation to provide 'reasonable accommodation' under Article 5(3).[54]

In the case of Jess, she has 'chosen' to live under the house. The rule that applies to all of us is that we can choose where and with whom we live, and Jess has a choice of selling the house to live in supported accommodation. In *HM v Sweden*, where the disability related to physical needs, the State had to consider an exception to identical treatment by way of allowing for a physical accommodation in terms of a hydrotherapy pool.[55] When accommodating cognitive impairment, the type of assistance or exception required may be more complex,[56] but this chapter argues that not only support for decision-making but, in some cases, decision-making by a substitute can provide this type of assistance.

[52] Committee on the Rights of Persons with Disabilities, *Views: Communication No 3/2011*, 7th sess, UN Doc CRPD/C/7/D/3/2011 (19 April 2012) [4.12] ('*HM v Sweden*').

[53] 'Although indirect discrimination does not appear in the CRPD, it is not disputable that this form of discrimination is covered by Article 2 as well. A statement in support of this view can be found in *HM v Sweden*, where the CRPD Committee owed for the possibility that a national law, though applied in a neutral way, may lead to discriminatory consequences if the particular circumstances of the individuals to whom it is applied are disregarded'. Rachele Cera, 'Article 2: Definitions' in Valentina Della Fina, Rachele Cera and Giuseppe Palmisano (eds), *The United Nations Convention on the Rights of Persons with Disabilities: A Commentary* (2017) 107, 112.

[54] *HM v Sweden* (n 52) [9].

[55] Ibid [8.8].

[56] See, for example, the comments of Plumb, a 'survivor of psychiatry' who writes that: '…it is much harder to express my immediate needs and not everyone is able to respond as easily to another's emotional needs or apparent "madness" as to a request for physical assistance. And even if I do express my wishes, say for "sanctuary", chances are such support is not available anyway': Anne Plumb, 'UN Convention on the Rights of Persons with Disabilities: Out of the Frying Pan into the Fire? Mental Health Service Users and Survivors Aligning with the Disability Movement' in Helen Spandler et al (eds), *Madness, Distress and the Politics of Disablement* (Bristol University Press, 2015) 183, 194.

The case of Jess will be returned to when considering the particular application of substantive, inclusive equality to Article 12. The next section describes and considers what is meant by the terms 'reasonable accommodation' and 'appropriate' or 'specific measures', how they can be used to achieve equality, and how they are incorporated into the text of the CRPD.

2.6 *Differential Treatment for Substantive Equality*

General Comment No 6 reflects explanations previously published by the ESCR Committee in describing two types of different treatment that will not be discriminatory in the case of disability.[57] The first is reasonable accommodation as provided for in Article 5(3) CRPD, and the second type is constituted by the 'specific measures' (called 'appropriate measures' by the ESCR Committee)[58] necessary to achieve equality as provided for in Article 5(4) CRPD. Human rights law more broadly recognises that these two categories of differential treatment may be necessary to prevent indirect discrimination and achieve substantive equality.[59]

2.6.1 Denial of Reasonable Accommodation

The concept of reasonable accommodation is prevalent in anti-discrimination law[60] but was first expressly recognised in UN instruments by the ESCR Committee in its *General Comment No 5 on Person with Disabilities*.[61] It is defined in Article 2 CRPD as:

> necessary and appropriate modification and adjustments not imposing a disproportionate or undue burden, where needed in a particular case, to ensure to persons with disabilities the enjoyment or exercise on an equal basis with others of all human rights and fundamental freedoms …

General Comment No 6 further explains that reasonable accommodation is an action that is taken in a particular case either by way of removing barriers or providing assistance, the cost of which is not borne by the person with disability but by the State or the provider of the service or facility.[62] Further, 'An accommodation is

[57] Committee on Economic Social and Cultural Rights, *General Comment 5: Persons with Disabilities*, 11th sess (9 December 1994) ('*ESCR General Comment No 5*') [5], [18]; note that *General Comment No 6* does not acknowledge that it has replicated the wording in the earlier instrument.

[58] Ibid.

[59] Broderick, *The Long and Winding Road to Equality and Inclusion for Persons with Disabilities* (n 8) 115–35, 152–3.

[60] Sometimes referred to as 'reasonable adjustment' or 'reasonable measures', for example *Disability Discrimination Act 1992* (Cth) ss 5–6.

[61] *ESCR General Comment No 5* [15].

[62] *General Comment No 6* [18(c)].

reasonable … if it achieves the purpose (or purposes) for which it is being made, and is tailored to meet the requirements of the person with a disability'.[63] In *Beasley v Australia*, the UN Disability Committee decided that there was a failure to provide reasonable accommodation in the form of an Auslan interpreter to allow a deaf person to participate on a jury.[64] An example of reasonable accommodation for an adult with cognitive disability may be to provide relevant information from a retailer or health provider in Easy Read format. It has been argued that this express inclusion of reasonable accommodation as part of the right to non-discrimination is transformative of the right to equality. This is because reasonable accommodation is no longer just an exception to the equal treatment principle but has the effect of placing the burden on the State or third party to show that accommodations were not possible.[65]

Reasonable accommodation purportedly is to be negotiated on a case-by-case basis in each situation, rather than constituting a systemic response;[66] however, boundaries and definitions do blur. This is because even though initiated on a case-by-case basis, the availability of reasonable accommodations may become a public good,[67] and its provision on a case-by-case basis can lead eventually to system-wide change.[68] While the duty to provide reasonable accommodation is mandatory under the CRPD, it is limited so that it does not impose a 'disproportionate or undue burden' in terms of cost and convenience on the provider of goods or services. In the CRPD, reasonable accommodation ensures that indirect discrimination is remedied or prevented so as to uphold a wide range of human rights. It can be distinguished from situations where discrimination is prevented through state restraint – that is, restraint from making a 'distinction, exclusion or restriction' on the basis of disability.

2.6.2 Specific or Appropriate Measures

Like reasonable accommodation, specific measures include positive action and provision of socio-economic resources and could be rearticulated in some cases as responses to socio-economic rights claims. However, *General Comment No 6* explains how they categorically differ from reasonable accommodation in that (as

[63] Ibid [25(a)].

[64] Committee on the Rights of Persons with Disabilities, *Views: Communication No 11/2013*, 15th sess, UN Doc CRPD/C/15/D/11/2013 (1 April 2016) ('*Beasley v Australia*').

[65] 'For the first time in a UN human rights treaty, denial of reasonable accommodation is included as a distinct form of discrimination … This strengthens considerably the protection provided to persons with disabilities under international human rights law'. Broderick, *The Long and Winding Road to Equality and Inclusion for Persons with Disabilities* (n 8) 155.

[66] *General Comment No 6* [26(e)].

[67] Ibid 24(b).

[68] '…reasonable accommodation has the potential to result in fundamental structural transformations of the norm': Kayess and French (n 34) 9.

described above) reasonable accommodation is ostensibly an 'individualised, reactive duty' that arises when an accommodation request is received.[69] By way of contrast, specific measures imply that 'preferential treatment' is required to address historic or systemic abuse. *General Comment No 6* explains how a second difference is that specific measures are usually temporary, the clear implication being that once specific temporary measures (e.g. preferential recruitment strategies for people with disability) achieve their purpose of remedying structural or systemic inequalities, they will no longer be needed.[70] I note, however, that the temporary nature of specific measures is not expressed in the text of the CRPD itself[71] and that *General Comment No 6* does acknowledge that permanent specific measures may sometimes be required, 'depending on context and circumstances, including by virtue of a particular impairment or the structural barriers of society'.[72]

What reasonable accommodation and specific measures have in common is that, in order to identify a need for either of them, material and relevant difference relating to a disability must be recognised. Recognition of these differences is fundamental to achieving substantive equality. The next section reviews those parts of the CRPD and *General Comment No 6* that demand recognition of the difference of disability, as well as recognition of the differences within disability.

2.6.3 Recognising Difference

The Preamble to the CRPD recognises 'the diversity of persons with disabilities'[73] and their communities[74] and acknowledges the socio-economic differences experienced by people with disability.[75] *General Principle No 4* affirms 'Respect for difference and acceptance of persons with disabilities as part of human diversity and humanity'.[76] Article 21 (Freedom of expression and opinion, and access to information) refers to 'different kinds of disabilities'[77] and Article 24 (Education) refers to recognition of 'human diversity'.[78] *General Comment No 6* also recognises that people with disabilities can be 'disproportionately affected by violence, abuse and

[69] Ibid [24(b)].
[70] Ibid [25(c)].
[71] For more information on the permanent versus temporary special measures and her observation that: 'Article 5(4) *CRPD* does not contain this temporal limitation and it is therefore akin to Article 4 *Convention on the Elimination of All Forms of Discrimination against Women*, opened for signature 1 March 1980, 1249 UNTS 8 (entered into force 3 September 1981), under which both temporary special measures and permanent protective measures are permissible': Broderick, *The Long and Winding Road to Equality and Inclusion for Persons with Disabilities* (n 8) 125.
[72] *General Comment No 6* [25(c)]–[29].
[73] *CRPD* Preamble para 9.
[74] Ibid para 13.
[75] Ibid para 19.
[76] Ibid Article 3.
[77] Ibid Article 21(a).
[78] Ibid Article 24(a).

other cruel and degrading treatment', indicating that they may be situated differently when it comes to potential exposure to violence. It has already been pointed out above that older people may be recognised as a different sub-group and that permanent (not just temporary) specific measures may be required for different types of impairment.

General Comment No 6 also acknowledges that substantive equality entails acknowledgement of difference, describing how:

> Formal equality seeks to combat direct discrimination by treating persons in a similar situation similarly. It may help to combat negative stereotyping and prejudices, but it cannot offer solutions for the 'dilemma of difference', as it does not consider and embrace differences among human beings. Substantive equality, by contrast, also seeks to address structural and indirect discrimination and takes into account power relations. It acknowledges that the 'dilemma of difference' entails both ignoring and acknowledging differences among human beings in order to achieve equality.[79]

This 'dilemma of difference' is illustrated further below in relation to supported decision-making, which I argue relies on recognising the difference of disability in the obligation to provide support. Wolff recognises this dilemma of difference when he points out that 'Disability advocates sometimes seem to want to argue both that there is no hard and fast line between able-bodied people and disabled people, yet, at the same time, that disabled people should receive special legal protection'.[80] Wolff is correct in that some differences matter because they are material and relevant when it comes to providing differential treatment to ensure equality, but others are not, and should be ignored. In short, 'we can conclude that a society of equals is one that accepts people in their differences'.[81] Difficult questions arise as to what differences matter and what does it mean to achieve equality when we are situated differently.

2.7 *Analysis and Conclusions*

In summary, the CRPD was drafted not as a narrow, non-discrimination convention along the lines of *CEDAW* and *CERD* but as a convention that includes the full range of substantive human rights, civil-political and socio-economic, as they apply to disability. The emphasis on equality and non-discrimination in both the Preamble and the General Principles, together with the reiteration of the phrase 'on an equal basis with others' in many of the substantive articles, demonstrates

[79] *General Comment No 6* [10].

[80] Jonathan Wolff, 'Disability among Equals' in Kimberley Brownlee and Adam Cureton (eds), *Disability and Disadvantage* (Oxford University Press, 2009) 112, 134.

[81] Ibid 123.

the central role of equality as a right and a principle, as also affirmed by the UN Disability Committee in *General Comment No 6*. The CRPD also includes a stand-alone right to equality and non-discrimination in Article 5 so that any discriminatory treatment on the basis of disability, whether or not it relates to one of the other substantive articles in the convention, constitutes a violation.

General Comment No 6 confirms that the CRPD demands not just formal but substantive equality,[82] explaining how formal equality, in requiring everyone to be treated alike, ignores differences between people, including differences in their impairments and socio-economic starting positions. Principles of formal equality will recognise direct discrimination (i.e. when different treatment is evident on the face of a particular law) but will not look behind the law to recognise indirect discrimination to determine if the application of the law leads to substantive inequality in effect. Non-discrimination and substantive equality in the CRPD may demand positive, differential actions by the State or third parties to recognise and respond to difference. These differential responses have been identified in international human rights law – including the CRPD (and as confirmed by *General Comment No 6*) – as including reasonable accommodation or specific or appropriate measures. The text of the CRPD acknowledges the difference of disability, including the associated disproportionate levels of socio-economic disadvantage, and recognises the differences within disability.

Equality and non-discrimination are traditionally considered civil-political rights,[83] and formal equality, in typically requiring restraint by the State and being immediately realisable, bears the markers of a civil-political right. However, equality and non-discrimination apply across both categories of rights, and both reasonable accommodation and specific measures can amount to the provision of socio-economic resources. How the right to equality drives the indivisibility of human rights in the CRPD and Article 12 is considered further in Section 4. But first, Section 3 considers the four dimensions of inclusive equality as outlined in *General Comment No 6*.

3 INCLUSIVE EQUALITY: AN ADAPTATION OF TRANSFORMATIVE EQUALITY

This section describes how the concept of inclusive equality in *General Comment No 6* is a specific application or adaptation of substantive, transformative equality to disability rights.[84] In applying the concept of transformative equality to disability,

[82] *General Comment No 6* [14].

[83] Rachele Cera, 'Preamble' in Valentina Della Fina, Rachele Cera and Giuseppe Palmisano (eds), *The United Nations Convention on the Rights of Persons with Disabilities: A Commentary* (Springer International Publishing, 2017) 80, 167.

[84] See Broderick, *The Long and Winding Road to Equality and Inclusion for Persons with Disabilities* (n 8) 36–8.

General Comment No 6 has added the requirement that inclusive equality in the CRPD demands the recognition of universal legal capacity and the abolition of guardianship.[85] This chapter ultimately argues that a coherent application of the concept of transformative equality to disability – to recognise legal capacity (not universally but 'on an equal basis with others') – may in some cases require the actions of a substitute decision-maker.

3.1 *Foundations in 'Transformative' Equality: A Four-Dimensional Approach*

General Comment No 6 describes inclusive equality as having four dimensions:

> (a) a fair redistributive dimension to address socioeconomic disadvantages; (b) a recognition dimension to combat stigma, stereotyping, prejudice and violence and to recognise the dignity of human beings and their intersectionality; (c) a participative dimension to reaffirm the social nature of people as members of social groups and the full recognition of humanity through inclusion in society; and (d) an accommodating dimension to make space for difference as a matter of human dignity.[86]

The formulation of inclusive equality as incorporating four dimensions has been adapted from a submission to the UN Disability Committee on a draft of *General Comment No 6* made by Fredman et al,[87] which, in turn, has its origin in Fredman's *Human Rights Transformed: Positive Rights and Positive Duties*.[88] In their submission on *General Comment No 6*, Fredman et al propose a 'four-dimensional evaluative framework' of 'transformative' equality, prescribing four dimensions that approximate those incorporated in the final version (above).[89] Before the publication of *General*

[85] *General Comment No 6* [47]–[50].

[86] *General Comment No 6* [11].

[87] Sandra Fredman et al, 'Achieving Transformative Equality for Persons with Disabilities', Submission to the Committee on the Rights of Persons with Disabilities, for General Comment No 6 on Article 5 of the UN Convention on the Rights of Persons with Disabilities' (Oxford Human Rights Hub, undated) <www.ohchr.org/EN/HRBodies/CRPD/Pages/WSPersonsDisabilitiesEqualityResponsability.aspx>.

[88] That more broadly applicable concept was described as: 'First, it should promote respect for the equal dignity and worth of all, thereby redressing stigma, stereotyping, humiliation, and violence because of membership of an out-group … Secondly, it should entail an accommodation and positive affirmation and celebration of identity within community. Thirdly, it should break the cycle of disadvantage associated with out-groups. Finally, it should facilitate full participation in society. The content of positive duties can more easily be specified in relation to these four aims or dimensions': Sandra Fredman, *Human Rights Transformed: Positive Rights and Positive Duties* (Oxford University Press, 2008) 179.

[89] 'We recommend that a four-dimensional evaluative framework be incorporated. This would give clarity and strength to the conception of transformative equality … This conception requires that, to achieve transformative equality, measures must (i) redress the social and economic disadvantage associated with disability; (ii) address stigma, stereotyping, prejudice and violence on the basis of disability; (iii) enhance participation and voice of people with disabilities and (iv) accommodate difference by achieving structural change': Fredman et al (n 87) 3.

Comment No 6, several writers had already described the CRPD as embracing transformative equality.[90] This is because the CRPD demands a redistribution of resources, equal access to and participation in society,[91] elimination of stereotypes and prejudices (especially through Article 8 'Awareness-raising'),[92] and structural transformation.[93]

3.2 *Equal to What or with Whom? Equality as an Approximation for Inclusion*

The terminology of 'inclusive equality' is apt because it reflects views in the literature that the goal of equality for people with disability is an approximation for socio-economic and civil-political inclusion. Kayess and French describe discrimination against people with disability as having the effect of segregating or excluding them from 'participating fully in society',[94] and in cataloguing the types of rights in the CRPD, Quinn and Rekas-Rosalbo group 'equality and participation rights' together.[95] Goldschmidt opines that the CRPD demands the recognition of difference to achieve substantive equality, but once recognised, the focus is not on difference but on 'how a maximum inclusion of all can be realised in our society'.[96] Arnadóttir links equality with the CRPD's emphasis on 'inclusion and accessibility',[97] and Broderick, in her endorsement of transformative equality, writes of the CRPD that 'Equality and non-discrimination norms are linked intrinsically to the notions of participation and inclusion in society'.[98] Beaudry, more explicitly than others, opines that the concept of 'equality' for people with disability has effectively been substituted as 'political idiom' for 'social integration'[99] and that social inclusion is in reality the crucial issue.[100]

[90] Broderick, *The Long and Winding Road to Equality and Inclusion for Persons with Disabilities* (n 8) 36–7; Andrea Broderick, 'Article 4: General Obligations' in Ilias Bantekas et al (eds), *The UN Convention on the Rights of Persons with Disability: A Commentary* (Oxford University Press, 2018) 116, 117; Corsi (20) 140ff; Cera, 'Article 5' (n 20) 153.

[91] Broderick, *The Long and Winding Road to Equality and Inclusion for Persons with Disabilities* (n 8) 39.

[92] '1. States Parties undertake to adopt immediate, effective and appropriate measures: … b) To combat stereotypes, prejudices and harmful practices relating to persons with disabilities, including those based on sex and age, in all areas of life' *CRPD* Article 8(1)(b).

[93] Clifford describes transformative equality in human rights law more broadly as requiring equality of results for disadvantaged groups through changing both social structures and 'the way organisations and institutions function': Clifford (n 2) 429–30.

[94] Kayess and French (n 34) 5.

[95] Gerard Quinn and Abigail Rekas-Rosalbo, 'Civil Death: Rethinking the Foundations of Legal Personhood for Persons with a Disability' (2016) 56 *Irish Jurist* 286, 299.

[96] Jenny E Goldschmidt, 'New Perspectives on Equality: Towards Transformative Justice through the Disability Convention?' (2017) 35 *Nordic Journal of Human Rights* 1, 12.

[97] Arnadóttir (n 32) 44–5.

[98] Broderick, *The Long and Winding Road to Equality and Inclusion for Persons with Disabilities* (n 8) 69.

[99] Beaudry, 'Welcoming Monsters' (n 33) 291.

[100] Jonas-Sébastien Beaudry, 'Beyond (Models of) Disability?' (2016) 41(2) *Journal of Medicine and Philosophy* 210, 211; Rioux proposes a concept of equality for people with disability as

The goal of participation and inclusion for people with disability is, like the principle of equality, threaded throughout the CRPD. Article 9 asserts the right of accessibility to enable persons to 'participate fully in all aspects of life'; Article 19, the right to 'full inclusion and participation in the community'; Article 24, the right to 'equal participation in education and as members of the community'; Article 26, the right to habilitation and rehabilitation so as to enable 'full inclusion and participation in all aspects of life', and Articles 29 and 30 refer to participation in 'political and public life' and 'cultural, life, recreation, leisure and sport', respectively. Notably, 'full and effective participation and inclusion in society' is one of the eight General Principles in Article 3 CRPD; and it is the first time that the principle of 'inclusion' has been incorporated in an international human rights treaty.[101] The goal of equality as inclusion has particular resonance for people with disability, given their historical and lingering exile in institutional settings; and the text of the CRPD, *General Comment No 6*, and the commentary above all point to a concept of equality as social inclusion. Fredman et al are explicit that it is the simultaneous achievement of all four dimensions that is required for inclusion,[102] and I would add, therefore, that it requires the fulfilment of a range of interdependent human rights according to the principle of indivisibility.[103]

3.3 *Equality and Indivisibility*

While Fredman et al explicitly provide that the four dimensions of transformative equality must be applied simultaneously, this is also implicit in *General Comment No 6* which states that 'human rights are interdependent, interrelated and indivisible'.[104] I argue that the four-dimensional approach is underpinned by the principle of indivisibility.

amounting to achievement of 'well being', which requires recognising difference while ensuring socio-economic as well as civil and political inclusion: Martha Rioux, 'On Second Thoughts: Constructing Knowledge, Law, Disability and Inequality' in Stanley S Herr and Lawrence O Gostin (eds), *The Human Rights of Persons with Intellectual Disabilities: Different but Equal* (Oxford University Press, 2003) 287, 300–2; see also Melinda Jones, 'Inclusion, Social Inclusion and Participation' in Marcia H Rioux, Lee Ann Basser Marks and Melinda Jones (eds), *Critical Perspectives on Human Rights and Disability Law* (Martinus Nijhoff, 2011) 57; see also 'The CRPD builds on the knowledge that to realize human rights, persons must be included in society': Kjersti Skarstad, 'Disability and the Dilemma of Difference' in Franziska Felder et al (eds), *Disability Law and Human Rights: Theory and Policy* 87, 103.

[101] Arduin (n 40) 96.

[102] 'These measures need to be considered simultaneously in evaluating whether a measure advances equality': Fredman et al (n 87) 3.

[103] See also: 'Instead, social inclusion is better facilitated under a human rights paradigm that applies civil and political rights (that equalize treatment) in combination with economic, social and cultural rights (that equalize opportunity': Michael Ashley Stein, 'Disability Human Rights' (2007) 95(1) *California Law Review* 75, 92.

[104] *General Comment No 6* [9].

3.3.1 Equality as Disrupting the Hierarchy of Civil-Political over Socio-economic Rights

Non-discrimination and equality are traditionally categorised as civil-political rights. They bear the indicia of civil-political rights to the extent that they require restraint by the State from taking discriminatory action. It is also widely agreed that because a denial of reasonable accommodation is part of the right to non-discrimination, it is considered a civil-political right, subject to immediate realisation.[105] This is despite the fact that reasonable accommodation may constitute the provision of socio-economic goods or services. As Lawson suggests, the definition of 'discrimination' in Article 2 CRPD, by expressly including a 'denial of reasonable accommodation', requires States to spend money (in the tradition of socio-economic rights) to achieve equality;[106] and that this emphasis is specific to disability. Lawson argues that the emphasis in the CRPD on requiring reasonable accommodation[107] serves to form a 'bridge' between civil-political rights and socio-economic rights, because both sets of rights are subject to the non-discrimination requirement, concluding that in this respect 'The CRPD is an extraordinarily far-reaching convention'.[108] Similarly, Broderick writes that the duty to reasonably accommodate, as part of the non-discrimination requirement, is an important facilitator of economic rights in the disability field.[109] Lord and Brown also recognise the relationship between non-discrimination, equality and indivisibility when they write:

> The CRPD serves to re-conceptualize and unite civil and political rights and economic, social and cultural rights in the realization of equality for persons with disabilities by requiring reasonable accommodation through positive measures in all areas of life.[110]

[105] Ibid [12]. Quinn and Rekas-Rosalbo (n 95) 315; Anna Lawson, 'The UN Convention on the Rights of Persons with Disabilities and European Disability Law: A Catalyst for Cohesion?' in Oddný Mjöll Arnadóttir and Gerard Quinn (eds), *The UN Convention on the Rights of Persons with Disabilities: European and Scandinavian Perspectives* (Nijhoff, 2009) 81, 103.

[106] Albeit 'reasonable accommodation' is defined in Article 2 CRPD to be those adjustments 'not imposing a disproportionate or undue burden'.

[107] Article 5(3): 'In order to promote equality and eliminate discrimination, States Parties shall take all appropriate steps to ensure that reasonable accommodation is provided'. Lawson points out at that 'reasonable accommodation' is also explicitly mentioned in CRPD in Article 14(2) (Liberty and security of the person), Articles 24(2)(c) and 24(5) (Education); Article 27(1)(i) (Employment): Lawson, 'The UN Convention on the Rights of Persons with Disabilities and European Disability Law' (n 105) 103.

[108] Lawson, 'The UN Convention on the Rights of Persons with Disabilities and European Disability Law' (n 105) 104–7.

[109] Andrea Broderick, 'Harmonisation and Cross-fertilisation of Socio-Economic Rights in the Human Rights Treaty Bodies: Disability and the Reasonableness Review Case Study' (2016) 5 *Laws* 38.

[110] Rebecca Brown and Janet Lord, 'The Role of Reasonable Accommodation in Securing Substantive Equality for Persons with Disabilities' in Marcia H Rioux, Lee Ann Basser Marks and Melinda Jones (eds), *Critical Perspectives on Human Rights and Disability Law* (Martinus Nijhoff, 2011) 273, 281.

The emphasis on substantive equality challenges the traditional dichotomy between the two sets of rights. This is because it demands that all human rights, in requiring realisation on an equal basis, impose positive obligations on states to expend resources and that, depending on the nature of the obligations, this may only be achieved progressively. Returning to the case of *HM v. Sweden*, the applicant's civil–political right to be treated without discrimination depended on the fulfilment of her socio-economic right to habilitation in the form of access to an in-home hydrotherapy pool.[111] *General Comment No 6* provides further examples of reasonable accommodation that clearly involve claims to the fulfilment of socio-economic rights (e.g. transport services that may be required to take children with disability to school).[112]

The right to equality not only disrupts the traditional negative versus positive action bifurcation but also impacts the immediate versus progressive implementation obligations for civil-political and socio-economic rights, respectively. *General Comment No 6* makes it clear that reasonable accommodation is part of the right to non-discrimination and, as such, is a civil-political right and immediately realisable.[113] Ostensibly a civil–political right, the right to non-discrimination and equality disrupts the stereotypical markers of the traditional categories of rights by demanding urgent, if not immediate, realisation of human rights across both categories.[114] The emphasis in the CRPD on non-discrimination and substantive, inclusive equality develops the principle of indivisibility in its disruption of differences between the two sets of rights and associated denial of traditional hierarchies.

3.3.2 Equality as Demonstrating the Interdependencies between Rights

The second component of the indivisibility principle is the interdependence of rights: they depend on one another. Explained above is how the civil-political right to non-discrimination and equality may depend on the fulfilment of socio-economic rights related to the provision of reasonable accommodation and specific measures. The ESCR Committee has emphasised that failure to fulfil the socio-economic right to education for people with disability has led to the denial of equal opportunities more widely, as demanded by other rights.[115]

General Comment No 6 does make clear this interdependence, with one whole section describing and analysing the relationship of the rights to non-discrimination

[111] *HM v Sweden* (n 52).
[112] *General Comment No 6* [64].
[113] Ibid [12].
[114] Clifford (n 2) 434; Gauthier DeBeco, 'The Indivisibility of Human Rights and the Convention on the Rights of Persons with Disabilities' (2019) 68 (January) *International and Comparative Law Quarterly* 141; Stein (n 103) 149.
[115] Broderick, 'Harmonisation and Cross-fertilisation of Socio-Economic Rights in the Human Rights Treaty Bodies' (n 109) 9.

and equality to other rights in specific articles of the CRPD. Included in this section is a discussion of Article 6 on women with disabilities; Article 8 on 'awareness-raising'; Article 9 on 'Accessibility'; Article 12 on 'Equal recognition before the law'; Article 14 on 'Liberty and security of person'; Article 15 on 'Freedom from torture or cruel, inhuman or degrading treatment or punishment'; Article 16 on 'Freedom from exploitation, violence and abuse'; and Article 17 on 'Protecting the integrity of the person'.[116] Inclusive equality, as formulated in *General Comment No 6*, impliedly requires fulfilment of both civil–political and socio-economic rights interdependently, expressly requiring socio-economic redistribution, social and political inclusion, and the end of violence and abuse. The notion of inclusive equality is far more wide-reaching than other conceptions of substantive equality and is specifically focused on the human rights of people with disability.

Notably, inclusive equality also includes respect for dignity in two of its dimensions: '(b) a recognition dimension to combat stigma, stereotyping, prejudice and violence and to recognize the dignity of human beings and their intersectionality;' and '(d) an accommodating dimension to make space for difference as a matter of human dignity'.[117] The concept of dignity – its interrelationship with indivisibility and its role in interpreting the CRPD and Article 12 – was the subject of the previous chapter. However, it serves here to reiterate that dignity is closely related to equality in its demand that all humans be respected as having equal worth because of their humanity and that it is a value that underpins all human rights, emphasising their interdependence and indivisibility. In particular, like inclusive equality (or as an intrinsic part of it), dignity demands recognition of the embodied reality of peoples' lives and the interrelationship of socio-economic needs and rights with access to civil–political rights.

3.4 *Inclusive Equality, Difference and Models of Disability*

The starting point for achieving substantive equality, including the inclusive equality proposed by *General Comment No 6*, is to acknowledge difference and diversity because inclusive equality demands 'an accommodating dimension to make space for difference as a matter of human dignity'.[118] *General Comment No 6* provides that inclusive equality can only be achieved by addressing a range of civil–political and socio-economic rights claims (i.e. by addressing socio-economic disadvantage, combating prejudice and violence, and encouraging social participation). It thereby acknowledges conversely that this requires recognition of how individuals are differently situated at the centre of a web of distinct civil, economic, social, political and cultural structures, and influences.

[116] *General Comment No 6* [36]–[70].
[117] Ibid [11].
[118] Ibid.

The strict social model would recognise social and environmental differences between people with disability and others but would fail to acknowledge the particularity of an individual's impairment and associated inequalities and disadvantage. Under a medical model, disability had been associated with a deficit, with 'less' and with personal fault; so services tailored and targeted to people with disability reflected this patronising attitude both in substance and in the mode of delivery, encouraging social and political exclusion.[119] In this context, the terminology of 'special needs' or 'special education' became rapidly stigmatised and, for this reason, the terminology of 'special measures' used in relation to other UN human rights conventions was replaced by the 'specific' or 'appropriate' measures terminology in the CRPD.[120] I propose that the concept of inclusive equality for people with disability is underpinned by a social model of disability that recognises the residual impacts of impairment (i.e. recognises the difference and diversity of impairment and any associated socio-economic disadvantage).

There is some agreement in the literature that formal equality is underpinned by a strict social model of disability, while substantive equality demands recognition of the residual difference of impairment or disability.[121] Stein writes that a *strict* social model is limited to formal notions of equality by implying that all individuals are the same and that identical treatment leads to equality.[122] He goes on to argue that formal equality and the strict social model of disability fail to account for 'some individual variations … even when using broad and inclusive principles' and that while civil–political rights ensure procedural equality of opportunity, socio-economic rights are needed to 'effectuate first-generation rights' to ensure substantive equality of opportunity in terms of actual social participation and inclusion.[123] The emphasis in a strict social model on achieving the same level of functioning for all, so that disability is ultimately erased as a minority category, risks denying the humanity and dignity of those whose functional limitations remain, despite the efforts to achieve structural change.[124] In its comprehensive, multi-dimensional formulation, inclusive equality recognises that difference must be recognised but need to be

[119] See, for example, explanation of the 'medical model' in Broderick, *The Long and Winding Road to Equality and Inclusion for Persons with Disabilities* (n 8) 22–3.

[120] Ibid 122–3.

[121] Broderick appears to describe what I call a 'social model that recognises the residual impacts of impairment', when she writes that 'a model of disability has evolved which focuses both on the individualised impairment, as well as factors external to the disabled person – I will call this a social-contextual model of disability'. She argues that this socio-contextual model explains the CRPD's approach to transformative, substantive equality: ibid 24, 139.

[122] Stein (n 103) 91; see also: '…the [social] model has so far been expressed as requiring only formal equality – treating all persons the same – or as requiring only that people should have equal opportunities …': Skarstad, 'Disability and the Dilemma of Difference' (n 100) 94.

[123] Ibid 92–3.

[124] Stein applies a 'human-rights-based model' of disability, as a corrective to the strict social model, concluding that 'because advocates have limited the social model to formal equality theory, its application is limited within the human rights arena': ibid 83.

responded to in a way that defies stigmatisation, respects dignity, and results in civil, social, political, economic and cultural inclusion.

3.5 *Analysis and Conclusions*

This section has described the four-dimensional approach to inclusive equality prescribed by *General Comment No 6*, and how it is based on earlier formulations of substantive, transformative equality. The previous section already explained how substantive equality demands recognition of difference so that a differential response can be made to achieve equality, but this leaves open the question of what equality really means if we are all different and are responded to in different ways. This section has explained how in disability advocacy and literature, 'inequality' has been associated with civil, economic, political, social and cultural segregation and exclusion, and that the goal of equality has thus become synonymous with the goal of inclusion. This is evidenced in the literature and also reflected in the renaming of transformative equality as 'inclusive equality' when applied to the particular case of disability.

Several writers have described how the rights to non-discrimination and equality, although ostensibly civil-political rights, disrupt the traditional distinctions between categories of rights, and also demonstrate the interdependency between rights. The CRPD requires that all rights be fulfilled on a non-discriminatory basis so that the abolition of discrimination in the fulfilment of socio-economic rights is required to be realised immediately,[125] even though the socio-economic character of those rights would normally demand only progressive realisation.[126] The right to non-discrimination can require the provision of socio-economic measures both on an individual basis in the form of reasonable accommodation and on a system-wide basis in the form of specific or appropriate measures.

The trigger for differential treatment is the recognition of difference – both the differences attached to the individual and associated with their impairment and accompanying differences in the civil, economic, social, political and cultural environment. These differences are responded to, and inclusive equality realised, through a four-dimensional response that demands the simultaneous fulfilment of a wide range of civil–political and socio-economic rights to (a) address socio-economic disadvantage; (b) combat stigma, stereotyping and violence to recognise dignity; (c) ensure participation and inclusion; and (d) accommodate difference as a matter of human dignity.[127] This simultaneous achievement means that resources must be redistributed and difference recognised in a way that ensures participation and avoids stigma and ultimately leads to equality as inclusion.

[125] *General Comment No 6* [12].
[126] ICESCR Article 2(1); *CRPD* Article 4(2).
[127] *General Comment No 6* [11].

The next section considers how this concept of four-dimensional, transformative, inclusive equality, infused by the principle of indivisibility, can be applied to interpret Article 12 of the CRPD: the right to recognition of legal capacity 'on an equal basis with others'.

4 DISCRIMINATION, EQUALITY AND ARTICLE 12

General Comment No 6 reiterates that inclusive equality demands recognition of legal capacity under Article 12.[128] I argue in this section and the next, however, that if the four dimensions of transformative/inclusive quality are applied to interpret Article 12, then equality does allow for or demand decision-making by substitutes as a last resort because it can lead to inclusion.[129]

General Comment No 1 is clear in its prescription that the status and outcome tests of capacity constitute direct discrimination, and (as described in Chapter 2) there is wide agreement with this view.[130] It goes on to conclude that functional tests of capacity also constitute indirect discrimination because they disproportionately affect people with cognitive disability,[131] a conclusion that is contested by some of the commentary described below. In an endeavour to imbue meaning into the phrase 'on an equal basis with others', *General Comment No 1* does, however, go on to explain that Article 12 allows for denials of legal capacity that are not triggered by disability. It provides that:

> the right to equal recognition before the law and freedom from discrimination requires that when the State denies legal capacity, it must be on the same basis for all persons. Denial of legal capacity must not be based on a personal trait such as gender, race, or disability, or have the purpose or effect of treating the person differently.[132]

This section first discusses and analyses proposals for disability-neutral triggers for interfering in decision-making and concludes that these will inevitably

[128] Ibid [47]–[51].

[129] A footnote in the draft provided that the reference to 'on an equal basis with others' is to allow for some difference as to legal capacity between children and adults. This difference had already been acknowledged in the *Convention on the Rights of the Child, opened for signature 20 November, 1989, 1577 UNTS 11 (entered into force 2 September 1990)* by the limiting of some children's rights as compared to those of adults by reference to the 'evolving capacity of the child' in Articles 5 and 14: see comments of the Coordinator in: Ad Hoc Committee, *Daily Summary of the Fifth Session* (25 January 2005) www.un.org/esa/socdev/enable/rights/ahc5sum25jan.htm ('*Daily Summary 25 January 2005*').

[130] Chapter 2, Sections 3.2.1 and 3.2.2; see also Cera, 'Article 2' (n 53) 112.

[131] *General Comment No 1* [15]; Eilionóir Flynn and Anna Arstein-Kerslake, 'The Support Model of Legal Capacity: Fact, Fiction, or Fantasy?' (2014) 32(1) *Berkeley Journal of International Law* 124, 127–8; Piers Gooding and Eilionóir Flynn, 'Querying the Call to Introduce Mental Capacity Testing to Mental Health Law: Does the Doctrine of Necessity Provide an Alternative?' (2015) 4(2) *Laws* 245, 256.

[132] *General Comment No 1* [32].

disproportionately affect adults with cognitive disability. Second, it describes and analyses commentary that concludes a trigger of cognitive disability is not discriminatory in itself and can indeed be justified under theories of substantive equality. These conclusions are consistent with the argument in this chapter, albeit they apply tests of substantive equality that pre-date *General Comment No 6*.

4.1 The Search for 'Disability-Neutral' Criteria

General Comment No 1 suggests that legal capacity may be lawfully denied on the basis of bankruptcy or criminal conviction, given that neither of these conditions falls within prohibited bases of discrimination in human rights law.[133] However, these examples have been criticised by at least one commentator as ignoring the human rights of prisoners.[134] I propose further that these remarks reveal a lack of recognition that people with cognitive disability are widely over-represented in the prison system[135] and that a denial of legal capacity for prisoners would most likely constitute indirect discrimination against adults with cognitive disability.[136] This illustrates just how challenging it is to find truly 'disability-neutral' ' criteria for determining when a State should intervene in the area of decision-making.[137]

4.1.1 Extending the Doctrine of Necessity: Or Risk of Harm

Gooding and Flynn propose as a 'disability-neutral' basis for intervention, an expansion of the doctrine of necessity in the law of medical consent, such doctrine already

[133] Ibid.

[134] Quinn and Rekas-Rosalbo (n 95) 314.

[135] In relation to acquired brain injury, see Kristin Booth Glen, 'Introducing a New Human Right: Learning from Others, Bringing Legal Capacity Home' (2018) 49(3) *Columbia Human Rights Law Review* 1, 48; in relation to mental illness, see: Michael Perlin, 'Understanding the Intersection between International Human Rights and Mental Disability law: The Role of Dignity' in Bruce Arrigo and Heather Bersot (eds), *Routledge Handbook of International Crime and Justice Studies* (Routledge, 2013) 191, 191, 201; 'Aboriginal and Torres Strait Islander peoples with mental and cognitive disbilities are significantly over-represented in Australian criminal justice systems': in Eileen Baldry et al, *A Predictable and Preventable Path: Aboriginal People with Mental and Cognitive Disabilities in the Criminal Justice System* (University of New South Wales, 2015) 9.

[136] Caycho makes a similar analysis of legislation passed in Peru, which, although ostensibly forbidding denials of legal capacity based on disability, nevertheless allows for such declarations for 'habitual drunkards, drug addicts, persons with criminal convictions, bad administrators and spendthrifts'. He points out that adults with cognitive disability would be disproportionately represented in those cohorts: Caycho (n 99) 162–3.

[137] As indicated in Chapter 1 (Section 4.2), the interpretation and application of Article 12 in the criminal law environment is outside scope. Of interest though is an article by Wondemaghen, who in interpreting Article 12 in the criminal context concludes that: 'It soon becomes apparent then that 'on an equal basis with others' does not translate to 'on an identical basis with others': Wondemaghen (n 108) 182.

allowing for medical intervention without consent in emergencies.[138] They suggest that the test of 'serious adverse effects' proposed by Bach and Kerzner[139] could be used, provided that 'serious adverse effects' are explained as occurring 'when a person's life, health or safety is at imminent and grave risk, and failure to intervene would constitute criminal or civil negligence'.[140] Elsewhere, Flynn and Arstein-Kerslake propose a 'risk of imminent and grave harm to life, health or safety'.[141] However, in both cases, the authors acknowledge that the tests require further formulation so as not to impact disproportionately in practice on adults with disability.[142]

4.1.2 A Test of 'Special or Heightened Vulnerabilities'

Chapter 5 has already described some of the literature that proposes the vulnerable subject should be recognised as the foundation for personhood, in place of Kant's rational, autonomous person.[143] Hall proposes vulnerability as a universal human condition, but that when an individual is exposed to 'special or heightened vulnerabilities',[144] this could justify state intervention, whether or not a person had a cognitive disability. She explains that determining the degree or kind of vulnerability may include considerations of mental capacity; but, if so, it would consider a person's thinking processes in the context of their 'material, social and relationship' context, and may propose guardianship as one response among many to address the situation of heightened vulnerability.[145] Similarly, Herring has suggested heightened vulnerability may be a determinant for when state intervention, including guardianship,

[138] On consent and emergency situations, see: Bernadette Richards, 'Chapter 5: General Principles of Consent to Medical Treatment' in Ben White, Fiona McDonald and Lindy Willmott (eds), *Health Law in Australia* (Lawbook Co, 2018) 133, 154–6.

[139] For Bach and Kerzner's proposed test of 'serious adverse effects' in 'facilitated decision making', see Michael Bach and Lana Kerzner, *A New Paradigm for Protecting Autonomy and the Right to Legal Capacity: Advancing Substantive Equality for Persons with Disabilities through Law, Policy and Practice* (Law Commission of Ontario, October 2010).

[140] Gooding and Flynn (n 131) 261.

[141] Eilionóir Flynn and Anna Arstein-Kerslake, 'State Intervention in the Lives of People with Disabilities: The Case for a Disability-Neutral Framework' (2017) 13(1) *International Journal of Law in Context* 39, 49–50.

[142] Flynn and Arstein-Kerslake's caveats include that: 'we want to emphasise that this approach is based specifically on the legal, political, social and cultural context within which we as authors are located', and that 'Finally, there is a need to codify the criteria for intervention in legislation in order to constrain judicial discretion to authorise a broad range of interventions in the perception that these would be in the "best interests" of vulnerable adults': ibid 50; 'We also consider the need for deliberative law reform processes to identify such measures': Gooding and Flynn (n 131) 246.

[143] See Chapter 5, Section 4.3.

[144] Margaret Hall, 'Relational Autonomy, Vulnerability Theory, Older Adults and the Law: Making it Real' (2019) 12(1) *Elder Law Review* [i] [i], [ix].

[145] Margaret Hall, 'Rethinking Adult Guardianship: Mental Capacity and Vulnerability in the Context of Dementia in Old Age' (PhD Thesis, University of British Columbia, 2018) 13, 14.

may be justified[146] and that such a test should apply to adults both with and without impairments.[147] Herring expressly argues that such a test would be more compliant with the CRPD because intervention is not determined by disability but by broader criteria.[148] Like Hall, he sees guardianship as only one intervention among others to address heightened vulnerability, depending on the circumstances and the needs of the individual.[149]

A test of intervention based on vulnerability has attracted wide interest. Of note, however, is commentary pointing out that a vulnerability test would still disproportionately affect people with disability.[150] It has also been described as potentially throwing an even wider net than a capacity test, and allowing more readily for the dismissal of a person's avowed views and preferences.[151] In short, a test of vulnerability would, in all likelihood, affect people with disability (especially cognitive disability) more than others and, like the other tests proposed above, would not, therefore, be 'disability-neutral'.

4.1.3 Analysis and Conclusions on 'Disability-Neutrality'

General Comment No 1 recognises direct discrimination as unlawful but also prescribes that functional tests of capacity constitute unlawful discrimination on the basis that they disproportionately affect adults with cognitive disability, implying that they constitute indirect discrimination (see further below).[152] However, *General Comment No 1* interprets Article 12 as allowing for denials of, or limitations to, recognition of legal capacity, provided that they are not based on disability (i.e. they must be 'disability-neutral'). Several commentators have endeavoured to meet the challenge of finding a 'disability-neutral' basis for making distinctions as to legal capacity, including extending the doctrine of necessity; using a test of serious, imminent risk of harm; or replacing a capacity test with a test of heightened vulnerability.

[146] Jonathan Herring and Jesse Wall, 'Autonomy, Capacity and Vulnerable Adults: Filling the Gaps in the Mental Capacity Act' (2015) 35(4) *Legal Studies* 698, 719.

[147] He argues in the United Kingdom context that because the reach of the *Mental Capacity Act 2005* (England and Wales) is limited to people with 'impairments of the mind or brain', the inherent jurisdiction of the Supreme Court of England and Wales should be preserved to address the heightened vulnerability of others. For adults without impairments, functional capacity may not be at issue, but he argues that genuine autonomy may be impaired due to social and personal vulnerabilities. Despite the existing split jurisdiction in England and Wales (i.e. under the MCA for those with impairments and the inherent jurisdiction for others), Herring's overarching theoretical model is that the one test of vulnerability should apply to all adults, whether or not they have a cognitive disability.

[148] Herring and Wall (n 146) 717.

[149] Hall, Relational Autonomy, Vulnerability Theory, Older Adults and the Law' (n 144).

[150] Flynn and Arstein-Kerslake, 'State Intervention in the Lives of People with Disabilities' (n 141) 45.

[151] Mary Donnelly, *Healthcare Decision-Making and the Law: Autonomy, Capacity and the Limits of Liberalism* (Cambridge University Press, 2010) 125–7.

[152] See Section 4.2.1.

However, it is likely all of these proposed tests would nevertheless disproportionately affect adults with cognitive disability.

I conclude that under a conception of substantive, transformative or inclusive equality, privileging 'disability-neutral' responses is misplaced and counterproductive. Wilson goes so far as to say in this context that she is '…generally sceptical of claims of disability neutrality or the general claim that neutrality of any kind is ever possible'.[153] Inclusive equality makes clear that differential responses – including in the form of reasonable accommodation or specific measures – are not only allowed but may be required to redress the inequalities experienced by people with disability. The critical test for whether an action is discriminatory is not whether it is based on the distinguishing feature of impairment or disability, but whether it leads to disadvantage, unfavourable outcomes or exclusion.

4.2 'Disability-Neutrality' Is Not Essential for Equality

As referred to above, *General Comment No 1* considers a functional test of capacity to be unlawful under Article 12 because although it avoids a diagnostic or status distinction, it nevertheless impacts disproportionately on adults with cognitive disability, and is said to therefore constitute indirect discrimination. However, several critics point out that differential treatment – including through applying a functional test of capacity – is not in itself discriminatory and may be lawful if it upholds human rights. One commentator has suggested that guardianship could constitute reasonable accommodation.[154] This proposal is technically challenging, given the case-by-case nature of reasonable accommodation and the programmatic nature of guardianship. However, others have asserted its lawfulness by applying a test of discrimination promulgated in 1989 by the Human Rights Committee in its *General Comment No 18: Non-Discrimination*.[155]

4.2.1 Pursuing a Legitimate Aim with Objective and Reasonable Means

Martin et al argue that a functional test of capacity, although disproportionately affecting adults with cognitive disability, is justified under the Human Rights

[153] Kay Wilson, *Mental Health Law: Abolish or Reform?* (Oxford University Press, 2021) 184.

[154] 'Some decision-making impairments may be accommodated or rectified but at the end of the spectrum there will be a very small proportion of persons whose impairments mean that they lack decision-making ability, even with infinite resources available for support. For those persons, the appointment of a substitute decision maker becomes a reasonable accommodation to ensure that they are afforded basic human rights including the right to exercise legal capacity': Anita Smith, 'Are Guardianship Laws and Practices Consistent with Human Rights Instruments?' in A Kimberly Dayton (ed), *Comparative Perspectives on Adult Guardianship* (Carolina Academic Press, 2014) 247, 264.

[155] Human Rights Committee, *General Comment No 18 Non-Discrimination*, 37th sess, UN Doc CCPR/C21/1/Rev.1/Add.1 (21 November 1989).

Committee's test set out in *General Comment No 18: Non-Discrimination* because this test provides that:

> not every differentiation of treatment will constitute discrimination, if the criteria for such differentiation are reasonable and objective and if the aim is to achieve a purpose which is legitimate under the Covenant.[156]

Martin et al review the functional element of the capacity test under the MCA and conclude that it sets 'reasonable and objective' criteria because it is based on the 'presence or absence of decision-making ability', which is a 'plain objective, empirical fact' one way or the other.[157] It also pursues legitimate aims: the promotion of the independence of adults with disability, ensuring access to services, allowing for autonomous decision-making where possible and protecting adults when this is not possible.[158] They conclude that a functional capacity test is a 'reasonable means' to achieve the MCA's aims because it can result in protecting an adult's right to life, physical and mental integrity and access to health services in a situation where the adult cannot understand the information provided to them.[159] In short, at least in situations where an adult's health is at stake, it is reasonable to treat people differently when they can't understand that lack of treatment would lead to longer-term illness and disadvantage. Such differential treatment, although disproportionately applying to adults with cognitive disability, is not discriminatory because it upholds human rights.[160]

Dawson and Szmukler arrive at a similar conclusion when endorsing a functional test of capacity for involuntary mental health treatment. Although such a test may disproportionately affect people with mental illness, they conclude that it would *not* constitute unlawful discrimination. Szmukler argues, as do Martin et al above, that the test would be supported by reasonable and objective criteria in pursuit of a legitimate aim.[161] The legitimate aim would align with the principles of the CRPD to respect the 'inherent dignity of the person, and individual autonomy'. Support would be provided to enable autonomous decision-making, and treatment would

[156] Ibid [13].

[157] Wayne Martin et al, *Achieving CRPD Compliance: Is the Mental Capacity Act of England and Wales Compatible with the UN Convention on the Rights of Persons with Disabilities? If Not, What Next?* (Essex Autonomy Project, 2014) 17.

[158] Ibid 16.

[159] Ibid 18.

[160] See also 'It needs to be recognised that autonomy in decision-making, although a central component of the legal capacity protected by Article 12 of the CPRD, is not the only value the CRPD seeks to protect. Other central rights include the right to life (Article 10) and the right to the "highest attainable standard of [mental] health"' (Article 25); Katrine Del Villar, 'Should Supported Decision-Making Replace Substituted Decision-Making? The Convention on the Rights of Persons with Disabilities and Coercive Treatment under Queensland's Mental Health Act 2000' (2015) 4(2) *Laws* 173, 183.

[161] George Szmukler, '"Capacity", "Best Interests", "Will and Preferences" and the UN Convention on the Rights of Persons with Disabilities' (2019) 18(1) *World Psychiatry: Official Journal of the World Psychiatric Association (WPA)* 34, 37.

be provided to restore autonomy for those who previously had impaired capacity. Szmukler argues that the test is reasonable because decision-making ability and autonomy are intimately linked.[162] Dawson points out that such a test would only be discriminatory if it resulted in disadvantage for the adult, but if the adult received appropriate health treatment, this would be advantageous and, therefore, would not constitute unlawful discrimination.[163] Dawson's analysis in this respect aligns with the argument in this book, contesting the underlying premise of *General Comment No 1* that decision-making by a substitute is always and inevitably rights-denying.

4.2.2 Commentary and Conclusions

The writers above, who argue that Article 12 allows for the retention of decision-making by substitutes, do so on the basis that not all differential treatment constitutes discrimination. Before the publication of *General Comment No 6* with its formulation of inclusive equality, writers have relied upon the Human Rights Committee's *General Comment No 18: Non-Discrimination* to argue that decision-making by substitutes can lead to equality by pursuing a legitimate aim in accordance with reasonable and objective criteria. Several writers conclude that despite its disproportional effect on adults with cognitive disability, a functional test of capacity is justified on this basis, often to uphold the rights to life and access to health care.

The UN Disability Committee has not referred to the Human Rights Committee's *General Comment No 18* in its *General Comment No 6*, making it unclear whether it considers it applicable to the CRPD.[164] However, I argue that the 'objective and reasonable' test in *General Comment No 18* is consistent with the concept of inclusive equality, the latter serving to flesh out the earlier test. Inclusive equality could be interpreted as implying that to be reasonable and pursue a legitimate aim, any action taken must be implemented in a way that: (a) ensures a 'fair' redistribution of resources 'to address socio-economic disadvantages'; (b) combats 'stigma, stereotyping, prejudice and violence' to recognise dignity; (c) ensures participation and social inclusion; and (d) has 'an accommodating dimension to make space for difference as a matter of human dignity'.[165] Martin et al and Dawson make clear in their analyses (although it is sometimes lost in the larger debate) that for decision-making by substitutes to constitute discrimination, it has to lead

[162] Ibid.

[163] John Dawson, 'A Realistic Approach to Assessing Mental Health Laws' Compliance with the UNCRPD' (2015) 40 *International Journal of Law and Psychiatry* 70, 71.

[164] Gurbai's view is that: 'In sum, particularly when read in light of its drafting history, the CRPD Committee's general comment on equality and non-discrimination sends mixed messages in relation to the validity of the pragmatic definition in the context of the CRPD'. By 'pragmatic definition', Gurbai means that: 'differential treatment does not constitute discrimination if the purpose or effect of the differential treatment is to achieve a legitimate aim and if the differential treatment can be objectively and reasonably justified': Sándor Gurbai, 'Beyond the Pragmatic Definition? The Right to Non-Discrimination of Persons with Disabilities in the Context of Coercive Interventions' (2020) *Health and Ruman Rights Journal* 279, 279, 285.

[165] *General Comment No 6* [11].

to a disadvantageous or an unfavourable outcome. Guardianship and involuntary mental health treatment can result in subsequent denials of human rights depending on what decisions are made and how they are made. In many cases, however, guardians and other substitutes may be required to make decisions to uphold the adult's human rights, without which the adult would become subject to neglect if not ill-treatment or abuse.[166]

5 'INCLUSIVE EQUALITY' AND THE RIGHT TO LEGAL CAPACITY

In interpreting the words 'on an equal basis with others', I argue that an interpretation of Article 12 as a threshold right, which must be realised for the rights to equality and non-discrimination to be realised,[167] overlooks that Article 12 is itself subject to an understanding of what equality means. I further argue that both supported decision-making and decision-making by substitutes respond to the difference of cognitive disability and the differences within cognitive disability, to provide differential treatment that ensures inclusive equality.

5.1 *Supported Decision-Making and Inclusive Equality*

To ensure non-discrimination and inclusive equality, *General Comment No 6* reiterates that support must be provided for persons with disability to exercise their legal capacity.[168] Supported decision-making has, as its starting point, the recognition of difference (i.e. the difference of cognitive disability) and the differential 'appropriate measure' of support allows recognition of legal capacity 'on an equal basis with others'.[169]

As described and discussed in Chapter 4, many commentators argue that everyone requires support for decision-making – those with cognitive disability and those without – and that we all make decisions supported or influenced to greater or lesser extents by those around us.[170] However, as also pointed out in that chapter,

[166] Dawson recognises that involuntary treatment may in some cases uphold human rights, but in other cases violate them when he asks the question: 'Involuntary psychiatric treatment, for instance, could both limit a person's autonomy and promote their social inclusion, health, and standard of living. Would it therefore violate or promote the person's rights under the Convention as a whole?' Dawson (n 140) 71.

[167] 'The right to legal capacity is a threshold right, that is, it is required for the enjoyment of almost all other rights in the Convention, including the right to equality and non-discrimination'. *General Comment No 6* [47].

[168] Ibid [48].

[169] Note that Article 12(3) provides that 'States Parties shall take *appropriate measures* to provide access by persons with disabilities to the support they may require in exercising their legal capacity' (emphasis added).

[170] Gerard Quinn and Anna Arstein-Kerslake, 'Restoring the "Human" in "Human Rights": Personhood and Doctrinal Innovation in the UN Disability Convention' in Costas Douzinas

registration of supporters and accompanying administrative systems and safeguards are required to ensure the protection of adults with cognitive disability from abusive and exploitative supporters.[171] Some commentators contend that formal safeguards are not required for supported decision-making.[172] However, Carney et al point out that such a position 'downplays difference as between abled and disabled to leave safeguarding entirely to natural social processes'.[173] Moreover, it is highly unlikely that adults not identifying as having a cognitive disability would submit their relationships to oversight by a formal support system.

Informal supported decision-making trials also acknowledge the difference between adults with cognitive disability and those without, by requiring, for example, written agreements with supporters, or the establishment of triadic relationships between the adult, the supporter and a monitor.[174] Supported decision-making systems will be disproportionately used by adults with cognitive disability because the difference of cognitive disability requires a differential response to recognise legal capacity on an equal basis with others. Consistently with this analysis, Kanter writes that support for decision-making in Article 12 is one example of how 'the CRPD recognises the ways in which formal equality is not adequate to protect the rights of persons with disabilities'.[175] Other writers note the similarities and even

and C A Gearty (eds), *Cambridge Companion to Human Rights Law* (Cambridge University Press, 2012) 36, 46.

[171] *General Comment No 1* [17].

[172] Terry Carney et al, 'Realising "Will, Preferences and Rights": Reconciling Differences on Best Practice Support for Decision-Making?' (2019) *Griffith Law Review* 357, 374, citing Eilionóir Flynn, 'The Rejection of Capacity Assessments in Favor of Respect for Will and Preferences: The Radical Promise of the UN Convention on the Rights of Persons with Disabilities' (2019) 18(1) *World Psychiatry* 50.

[173] Carney et al (n 172) 374.

[174] Office of the Public Advocate (Qld), *Decision-Making Support and Queensland's Guardianship System: A Systemic Advocacy Report* (A Systemic Advocacy Report, April 2016) 171; Jacinta Douglas et al, 'Factors That Underpin the Delivery of Effective Decision-Making Support for People with Cognitive Disability' (2015) 2(1) *Research and Practice in Intellectual and Developmental Disabilities* 37, 40.

[175] Arlene S Kanter, *The Development of Disability Rights under International Law from Charity to Human Rights* (Routledge, 2015) 3; Dawson similarly implies that supported decision-making may be differential treatment which is not discriminatory because it is highly advantageous for the adult when he writes that: 'Evidence of impairment in such functioning can be highly relevant, and permitting such evidence to be used may be highly advantageous to the person, preventing inappropriate punishment, for example, or triggering entitlements to additional support:. Dawson (n 163) 73. Keys also arguably acknowledges this when she writes that: 'The Council of Europe Commissioner for Human Rights commented on the functional approach as having "given too little attention to the importance of support. It may have a future not as a measure of legal capacity but as a means of determining what kinds of supports should be available"': Mary Keys, 'Article 12' in Valentina Della Fina, Rachele Cera and Giuseppe Palmisano (eds), *The United Nations Convention on the Rights of Persons wtih Disabilities: A Commentary* (Springer International Publishing, 2017) 263, 276.

the overlap between the functions of support for decision-making and reasonable accommodation.[176]

General Comment No 6 provides that inclusive equality demands, 'an accommodating dimension to make space for difference as a matter of human dignity' to offer a solution for the 'dilemma of difference'.[177] To ensure equality of results and social inclusion, substantive, inclusive equality demands recognition of difference to provide support for decision-making for adults with cognitive disability. The right to supported decision-making acknowledges the residual impacts of impairment, even after legal capacity is recognised at a formal, legal level. According to the precepts of inclusive equality, supported decision-making will be used to redress economic disadvantage, combat stigma and violence and enable social inclusion, all based on a recognition of difference and dignity. It is a specific or appropriate measure in the form of the provision of socio-economic resources, which recognises difference and allows for (or demands) the State to be involved in personal relationships to ensure the right to equality. While the right to non-discrimination and equality is ostensibly a civil–political right, the achievement of inclusive equality depends on fulfilling a range of other civil–political and socio-economic rights.

Returning to the case of Jess, a best-case scenario would be for Jess to choose a different person as a supporter – not her son. Chapter 3 has already investigated what it calls the 'chicken and egg' or 'initiation problem' in this scenario – that is, that the first decision that she needed assistance with was indeed her choice of supporter.[178] If she refuses to change supporter because she has absolute trust in her son, then it is inevitable that a substitute decision would have to be made to appoint a new supporter.

Alternatively, we will assume that her son has died but that Jess still seems to want to live in the house and still does not care about her hygiene, health or appearance. All would agree that Article 12(3) CRPD requires recognition that the impairment associated with Jess's dementia means that she has a right to supported decision-making. Her daughter steps into the role without objection from Jess. A good scenario for Jess would be that her daughter could live with her and provide the necessary services and supports, with Jess's agreement or compliance.

Or if the daughter can't live with Jess because she has a young family in town, perhaps with a more trustworthy supporter for decision-making, Jess would be aided to understand the real choices open to her, and would express a preference to sell the farm and use the money to live somewhere more appropriate. Perhaps the daughter may interpret Jess's true will and preference to be that she wants to live elsewhere,

[176] Quinn and Rekas-Rosalbo note that: 'The concept of "reasonable accommodation" can perform some of the tasks of supported decision-making.… But it has its limits. It is not a replacement for a programme of supported decision-making': Quinn and Rekas-Rosalbo (n 95) 315; Bach and Kerzner (n 139) 112.

[177] *General Comment No 6* [11].

[178] See Chapter 3, Section 6.3.

where she can be houseproud as she always has been. (As illustrated through the case of Alex in Chapter 4, depending on what concept of autonomy we adopt, and how we interpret Jess's will and preferences, different decisions could be attributed to Jess.)[179] This would also be a good scenario for Jess – through utilising a supported decision-making framework.

But what if, even with her daughter as a trustworthy supporter, Jess continues to express a preference to live in the house, and there is overwhelming agreement that this accords with her lifelong wish not to sell the farm?

This is a hard case where, despite ostensibly recognising Jess's right to legal capacity, she remains subject to ongoing human rights abuses – including potentially violations of Article 16 ('Freedom from exploitation, violence and abuse'), Article 17 ('Protecting the integrity of the person'), Article 19 ('Living independently and being included in the community'), Article 25 ('Health'), Article 26 ('Habilitation and rehabilitation'), Article 28 ('Adequate standard of living and social protection') and Article 30 ('Participation in cultural life, recreation, leisure and sport'). Supported decision-making, while ostensibly upholding a right to legal capacity on an equal basis with others, may in hard or troubling cases shroud undue influence and allow for ongoing violations of a range of other indivisible human rights.

The position that supported decision making *always* upholds human rights ignores the reality that not all family relationships are benign and that limits to resources – both family and government – mean that decision-making 'choices' are likewise limited. Fulfilment of socio-economic rights may be a fundamental prerequisite for achieving decision-making autonomy and recognising legal capacity 'on an equal basis with others'.

5.2 *Equality, Substitute Decision-Making and Indivisibility*

I suggested above that the UN Disability Committee's view of guardianship as inherently discriminatory assumes a concept of formal equality premised on the argument that equality requires the same treatment for all. In limiting its analysis of Article 12 to one of formal equality, *General Comment No 6* fails to acknowledge the difference of impairment and disability as experienced in these cases of adults with severe and profound cognitive disability, such as the case of Jess. The difference inherent in such hard cases – both impairment and the disadvantages associated with cognitive impairment – is obscured by the assertion that *all* adults can be supported to make their own decisions.

The questions of who is 'different' and who is 'the same' is indeed complex, as acknowledged by *General Comment No 6* in its reference to the 'dilemma of

[179] See Chapter 4, Section 3.

difference'.[180] Some commentators have concluded that basing arguments for and against substitute decision-making on equality theory will never arrive at a satisfactory consensus because of the subjectivity involved in determining difference.[181] I suggest, however, that there is some consensus on difference when it comes to cognitive disability and decision-making. First, as explained above, there is an implicit agreement that the difference of cognitive impairment is a material one, evidenced in the consensus that supported decision-making may be required in some cases.

Second, there is wide acknowledgement that there are 'hard cases' that cannot be satisfactorily responded to with supported decision-making. As explained in Chapter 1, it is beyond the scope of this book to investigate or recommend a specific test or criteria for when decision-making by substitutes may be required (e.g. different capacity tests or heightened vulnerability).[182] But, as also explained in Chapter 1, there is wide agreement that, in some circumstances, supported decision-making has its limitations, either because of the nature or severity of the cognitive impairment, or the circumstances surrounding and associated with the impairment.[183] In this sense, there is broad agreement that some cases, because of their 'difference', are not adequately addressed by supported decision-making.

Despite general recognition of the differences between adults with cognitive impairment, *General Comment No 1* extends the will and preference test to all cases. Such an identical legal response for all adults with cognitive disability shrouds the reality of hard cases, obscuring their difference together with adults' associated different legal, economic and social needs. I argue that recognition of difference demands acknowledgement of the residual impacts of impairment, even after all possible social and environmental supports are provided. Once difference is recognised, differential treatment to achieve non-discrimination and substantive, inclusive equality is warranted and necessary to uphold a range of interdependent human rights beyond the right to legal capacity. There is express resistance to basing a legal regime on the 'hard cases' because acknowledgement of such difference may invert the paradigm for all.[184] However, in many cases, decision-making by substitutes may

[180] Ibid [10].

[181] Lucy Series and Anna Nilsson, 'Article 12 CRPD: Equal Recognition before the Law' in Ilias Bantekas, Michael Ashley Stein and Anastasiou Dimitris (eds), *The UN Convention on the Rights of Persons with Disabilities: A Commentary* (Oxford University Press, 2018) 339, 354.

[182] See Chapter 1, Section 4.2.

[183] Anna Arstein-Kerslake and Eilionóir Flynn, 'The General Comment on Article 12 of the Convention on the Rights of Persons with Disabilities: A Roadmap for Equality before the Law' (2016) 20(4) *The International Journal of Human Rights* 471, 482; Ron McCallum, *The United Nations Convention on the Rights of Persons with Disabilities: An Assessment of Australia's Level of Compliance* (Royal Commission into Violence, Abuse, Neglect and Exploitation of People with Disability, 2020) 49–50; Glen (n 135) 7; Peter Bartlett, 'Will and Preferences in the Overall CRPD Project' (2019) 18(1) *World Psychiatry: Official Journal of the* WPA 48, 49.

[184] Jillian Craigie et al, 'Legal Capacity, Mental Capacity and Supported Decision-Making: Report from a Panel Event' (2019) 62 *International Journal of Law and Psychiatry* 160, 162;

be the only way (or be one necessary tool among others) to achieve inclusive equality for an adult and respect their dignity and personhood.

5.3 *Case Study: Jess, Decision-Making and Inclusive Equality*

For Jess, transformational, inclusive equality requires that she:

(a) not be subject to socio-economic disadvantage;
(b) not be the object of stigma, stereotype or violence and that her dignity be respected;
(c) participate in society and be included; and
(d) have accommodations 'to make space for [her] difference as a matter of human dignity'.[185]

Depending on which view of autonomy we hold and how we apply the 'best interpretation' principle, supported decision-making could lead to different outcomes for Jess with very little transparency or accountability for the decision. If a substitute were appointed, then it would be clear who was making the decision, and if a decision were made that Jess remain in squalor, then the substitute's decision could be challenged.

In describing guardianship as 'reasonable accommodation' to ensure substantive equality, Smith writes that:

> the right to a secure environment, nutrition and necessary health care (tangible rights) should not be sacrificed in order to prevent a limited (in time and content) loss of legal capacity where that limited denial of legal capacity is properly adjudicated and subject to regular review and monitoring.[186]

In the above quote, Smith refers to the appointment of a guardian as a '*loss* of legal capacity' [emphasis added], which is required for an adult's socio-economic rights to food and health care to be realised. Later in the same article, she surmises that an adult's legal capacity may actually be '*enhanced* by the appointment of a substitute decision maker. In its essence substitute decision and supported decision making is a form of agency' [emphasis added].[187] Whether substitute decision-making amounts to a loss of capacity or an enhancement to capacity may depend on the particular way that future legislation is drafted. It is the actual, practical and material effects and implications of any finding of incapacity that determines whether a finding, one way or the other, leads to substantive inequality and social exclusion.

Gerard Quinn, 'Concept Paper "Personhood and Legal Capacity": Perspectives on the Paradigm Shift of Article 12 of the CRPD' (Conference Paper, HPOD Conference, 20 February, 2010) 17 www.inclusiveirelandie/document/HarvardLegalcapacitygqdraft2.doc; McCallum (n 183) 51.

[185] *General Comment No 6* [11].

[186] Smith (n 154) 268.

[187] Ibid 271.

In Jess's case, if a substitute decided to sell the farm and move Jess to more suitable accommodation, this would recognise that Jess is in a 'different' situation from others because of her impairment. It would address her socio-economic disadvantage, end her neglect and abuse, and enable her to participate in society with the goal of achieving inclusive equality. A substitute could make a decision that acknowledges Jess's personhood by respecting her dignity. Dignity (as we have seen in the previous chapter) acknowledges Jess's equal worth and the social dimensions of her humanity, respects her autonomy in those areas of life where she can exercise autonomy, takes account of her embodied selfhood and material situation, and recognises the indivisibility of human rights.

6 CONCLUSION

Article 12 requires recognition of legal capacity 'on an equal basis with others', and this chapter has argued that Article 12 may require decision-making by substitutes as a last resort to achieve substantive equality. In 2018, the UN Disability Committee published its *General Comment No 6*, which explains how the rights to equality and non-discrimination apply to the particular case of disability. It describes how the right to equality is referred to in the Preamble, recognised in two of the General Principles, established as a stand-alone right in Article 5 and reiterated in the refrain of 'on an equal basis with others' in sixteen of the substantive articles of the CRPD including Article 12.

The chapter has described and explained different concepts of discrimination and equality as they have evolved in human rights law and theory and as explained in *General Comment No 6*. It described how the concept of formal equality, which focuses on commonalities and demands identical treatment to achieve non-discrimination, has been largely abandoned as the prevailing concept of equality in human rights theory, especially in addressing the rights of marginalised people, including adults with disability. The novel inclusion of an express right to reasonable accommodation in the CRPD recognises the importance of substantive equality for people with disability. The obligation to provide reasonable accommodation recognises that different treatment may be required to achieve substantive equality for people with disability – albeit ostensibly applying only on a case-by-case basis. The CRPD recognises that reasonable accommodation alone will not achieve structural, systemic and substantive equality for people with disability, because it is limited to a case-by-case approach and qualified by the proviso that it does not impose a disproportionate or undue burden on a third party. For this reason, the CRPD requires specific measures appropriate to disability to be pursued and provided by the State and others, to ensure substantive equality.

The provision of both reasonable accommodation and specific measures depends on recognising the differences associated with disability, in order to respond with appropriate differential responses. *General Comment No 6* acknowledges the

dilemma that difference raises for assessing and measuring substantive equality and proposes the concept of inclusive equality as a solution. The term 'inclusive equality' reflects views in the literature that suggest or propose that equality in the area of disability advocacy and policy has been used as an approximation for inclusion. Inclusive equality adapts a four-dimensional account of transformative equality to the particular case of disability. It provides that equality is achieved or marked by redressing socio-economic disadvantage; eliminating stigma, prejudice and abuse; enabling participation and inclusion and accommodating difference to respect dignity.

I argue that inclusive equality, in requiring all four dimensions to be achieved simultaneously, recognises the indivisibility of human rights as the interdependency of rights and affirming the equal importance of socio-economic with civil–political rights. The literature on equality more widely argues that substantive equality is driven by the principle of indivisibility. It explains how reasonable accommodation displays indicia of a socio-economic right but is part of the civil-political right to non-discrimination, and also that the civil-political right to non-discrimination applies across both categories of rights. Rights to specific measures, while needed to ensure the fulfilment of a range of rights, including civil–political rights, can resemble socio-economic rights. They frequently demand positive state action, involvement in the personal sphere, and the provision of socio-economic resources. For this reason, the notion of substantive equality in the CRPD has been said to function as a bridge between socio-economic and civil-political rights, emphasising and driving the indivisibility of human rights as espoused in the CRPD. I further argued that the notion of substantive and inclusive equality for people with disability is premised on a social model of disability that recognises the residual impacts of impairment and the differences and disadvantages associated with such impairments. A strict social model elides these differences in its aspiration that ultimately, with appropriate social and environmental changes, disability will no longer exist or be recognised.

I argue that both *General Comment No 1* and *General Comment No 6*, by asserting that realisation of all other rights depends on recognising legal capacity, fail to recognise interdependencies between Article 12 and other rights and instead privilege the civil-political right to legal capacity above all others. *General Comment No 1* interrogates, to an extremely limited extent, the concept of equality as it applies to legal capacity. There are two key gaps in its equality analysis. First, it provides that legal capacity may be denied if done according to disability-neutral criteria, without solving the dilemma of what disability neutrality may mean in practical terms. Commentators have considered extending the doctrine of necessity, relying on tests of harm or introducing the test of heightened vulnerability. Ultimately, however, these formulations still impact disproportionately on adults with cognitive disability, responding to them with differential treatment and revealing that disability neutrality is not the key to substantive equality. Second, *General Comment*

No 1 incorrectly assumes that decision-making by a substitute will always result in unfavourable treatment. Scholars have to date used the test in the Human Rights Committee's *General Comment No 18 Non-Discrimination* to argue that such differential treatments do not amount to inequality for people with disability if they pursue a legitimate aim in accordance with reasonable and objective criteria.

I argued that, in interpreting and applying Article 12, *General Comment No 6* fails to apply the four dimensions of inclusive equality to adults with severe and profound cognitive disability. The requirement that adults with cognitive disability may need support to exercise legal capacity does implicitly acknowledge the residual impact of cognitive impairment and the need for an appropriate measure or differential response to achieve substantive, inclusive equality. I argued that there is also wide acknowledgement of the difference posed by hard cases, although it is beyond the scope of this book to determine precisely where that boundary may lie. Extending supported decision-making to hard cases may result in formal equality, but differential treatment in the form of decision-making by substitutes may be required to achieve inclusive equality and to recognise personhood in respecting human dignity. For Jess, the privileging of her autonomy could lead to opposing results, depending on our view of autonomy. But respecting her, and *our* dignity, demands that any decisions enable her civil, economic, political, social and cultural inclusion by respecting her indivisible human rights. In hard cases, decision-making by substitutes can be one appropriate measure or tool through which an adult with cognitive disability can be situated as a claimant of a broad range of human rights.